

ZAHMOUL v ZAHMOUL — 20 MOST COMPELLING MISCONDUCT IN PUBLIC OFFICE RECORDS

Master Index v7 · Updated 15 March 2026 · AC-2025-LON-004293 / BV20D01752 / BL-2024-001217 · 379 records total
Attorney General's Reference (No 3 of 2003) [2004] EWCA Crim 868 · FPR Part 3A · PD3AA · Equality Act 2010 ss.20, 29

WHAT IS NEW IN THIS VERSION (Records 16–20)

Five records have been added. Each fills a gap in the original 15 that matters for law enforcement analysis of the misconduct in public office elements:

- 16 — Cardiac hospitalisation (5 March 2024): First documented physical harm caused by institutional failure. The causal chain from no Part 3A accommodation → unresolved uncertainty → cardiac crisis is established in writing on this date.
- 17 — NOAP / LIP transition (6 March 2024): The precise moment Part 3A protections fell away without any assessment or order. W was hospitalised the day before. No Part 3A review. No transition support. Full burden of a £6.2M case transferred to an autistic, PTSD-diagnosed woman.
- 18 — First PTSD disclosure (19 March 2024): First explicit written naming of PTSD in the correspondence record. Solicitor acknowledges it and takes no action. Pattern confirmed by CLAAS diagnosis June/July 2025.
- 19 — Binary question refusal (21 March 2024): Clearest documented evidence of autistic communication needs being refused by a legal professional. Single YES/NO question explicitly declined. Simultaneous coercive threat. CLAAS confirms binary questions are a core accommodation need.
- 20 — Pre-deadline escalation day (2 May 2024): 20+ documented communications in a single day. Every responsible actor — judge, Lord Chancellor, two KCs — placed on notice of W's inability to participate. Campbell submits the unilateral draft order the following morning.

#	DATE / REF	ACTOR / DOCUMENT	WHY COMPELLING — FOR LAW ENFORCEMENT	TAGS
ORIGINAL 15 — CORE MISCONDUCT RECORDS				
1	17 May 2024 OUT_304	Court / MacDonald J (via Kelly Foxwell) Re: Zahmoul Order and judgment	Three days without food. £120. No barrister. Court seals order. W on third day of hunger. Too weak to engage. Judge refuses MPS enforcement. 14 May deadline imposed and passed. Court proceeds to seal order. W writes to judge, Lord Chancellor, and US Secretary of State simultaneously from position of starvation. All 6 tags fire simultaneously.	WILFUL-NEGLECT RECKLESS-INDIFF REASONS-REFUSED PARTICIPATION-DENIED INSTITUTIONAL-DEFLECT ABUSE-OF-PROCESS
2	3 May 2024 OUT_289	Court / MacDonald J (via Karen Selby-King) First stay application — no form, no response	First stay application. No form given. No response. Proceedings continue. W's first formal stay application. Court has no mechanism and gives no form. W explicitly tells judge proceedings cannot continue without MPS enforcement and equal footing. Court proceeds anyway. All 6 tags fire simultaneously.	WILFUL-NEGLECT RECKLESS-INDIFF REASONS-REFUSED PARTICIPATION-DENIED INSTITUTIONAL-DEFLECT ABUSE-OF-PROCESS
3	7 May 2024 IN_349	Court — Higgleton (cover clerk) relaying MacDonald J MPS enforcement refusal	Fee paid. D50K capable of issue. Judge refuses enforcement. Deadline imposed. MacDonald J refuses MPS enforcement on procedural grounds despite W having paid the £58 fee and D50K being capable of issue. Simultaneously imposes 14 May 4pm deadline. States LiP status is not a reason to stay. Court acting with direct knowledge of W's incapacity and financial crisis.	WILFUL-NEGLECT RECKLESS-INDIFF PARTICIPATION-DENIED INSTITUTIONAL-DEFLECT ABUSE-OF-PROCESS
4	3 May 2024 15:53 IN_KAREN_03MAY	Court — Karen Selby-King relaying MacDonald J Equal footing argument reframed	Court reframes W's Part 3A argument as 'wanting a lawyer arranged'. Refuses reasons. MacDonald J mischaracterises W's equal footing argument as a request for the court to arrange legal representation, then concludes no decision requiring reasons has been taken. This is the court refusing to engage with a formal equality argument by reframing it as something else.	WILFUL-NEGLECT RECKLESS-INDIFF REASONS-REFUSED PARTICIPATION-DENIED INSTITUTIONAL-DEFLECT
5	14 May 2024 14:44 IN_352	Campbell KC (H) Filed to Karen / judge without exchange DRAFT FINAL ORDER (5 unilateral amendments)	W in hospital. 5 amendments inserted unilaterally. Court accepts without exchange. Filed on deadline day with 5 material amendments W had no input on. Para 38: removes W from education fund management. Para 43 deleted. Para 35 pension framework removed. W is in hospital with £120. Court accepts and proceeds to seal. ★ UNILATERAL ORDER DATE.	WILFUL-NEGLECT RECKLESS-INDIFF PARTICIPATION-DENIED INSTITUTIONAL-DEFLECT ABUSE-OF-PROCESS

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6	3 May 2024 16:48 <i>IN_MACDONALD2</i>	Court — MacDonald J (via Karen Selby-King) Second response to Part 3A argument	'Welfare noted.' No order. No reasons. No Part 3A mechanism identified. Court's second response to W's equal footing / Part 3A argument. Welfare noted. No action. No Part 3A order. No reasons. The word 'noted' in response to formal Part 3A and equality submissions is itself the institutional deflection.	WILFUL-NEGLECT RECKLESS-INDIFF REASONS-REFUSED PARTICIPATION-DENIED INSTITUTIONAL-DEFLECT
7	3 May 2024 16:54 <i>OUT_279</i>	W → MacDonald J + Lord Chancellor simultaneously Unequal Footing letter	Two direct constitutional questions to judge. No substantive answer from either. W explicitly raises two constitutional questions: why does the court maintain unequal footing when it has power to enforce MPS? How can she participate without food? Sent to judge and Lord Chancellor simultaneously. No response from either on substance.	WILFUL-NEGLECT RECKLESS-INDIFF PARTICIPATION-DENIED INSTITUTIONAL-DEFLECT ABUSE-OF-PROCESS
8	8 May 2024 04:24 <i>OUT_293</i>	W → Higgleton (cover court official) Health disclosure 4:24am	4:24am. Heart problems first disclosed. Children affected. Deadline set in response. W writes at 4:24am disclosing PTSD, anaemia, and — first documented disclosure — heart problems. Children in distress. Daughter needs plane ticket from Boston. No food, no money. Writing at 4am is itself a symptom. Higgleton's response sets the 14 May deadline without addressing any of this.	WILFUL-NEGLECT RECKLESS-INDIFF REASONS-REFUSED PARTICIPATION-DENIED INSTITUTIONAL-DEFLECT
9	8–9 April 2024 <i>OUT_303</i>	W → Court (Anita Knight / MacDonald J) Confidential — Very High Safety Risk	Safety incidents reported to judge. Judgment 9 days later. No reference to safety disclosures. W reports three physical safety incidents to MacDonald J while judgment is reserved — two in 2023 (police reported), third 24 March 2024 involving 16-year-old daughter Lila Mae in Kensington. Judgment delivered 18 April without any reference to safety disclosures.	WILFUL-NEGLECT RECKLESS-INDIFF REASONS-REFUSED PARTICIPATION-DENIED INSTITUTIONAL-DEFLECT
10	24 May 2024 <i>SEALED_ORDER</i>	Court / MacDonald J Approved final order + costs judgment Friday before Bank Holiday	Both documents sent simultaneously. Friday before 3-day Bank Holiday. W LIP, no food. Approved final order AND costs judgment transmitted simultaneously at 11:28 on Friday 24 May — the Friday before the Bank Holiday weekend. W had no legal representation, no food, no accommodation. This timing made any urgent response structurally impossible for 4 days. ★ UNILATERAL ORDER DATE.	WILFUL-NEGLECT RECKLESS-INDIFF PARTICIPATION-DENIED ABUSE-OF-PROCESS INSTITUTIONAL-DEFLECT
11	15 May 2024 <i>IN_351</i>	Campbell KC → W + Karen + Higgleton + Foxwell Explanation of draft order process	H's own KC confirms W's input is 'minimal'. Court does not intervene. The day after the deadline, Campbell explains to W that the draft order process is 'the judge's decision' and W's input is minimal. This is the acknowledgment — from H's own counsel — that W was structurally excluded from the drafting process. Court accepts it.	WILFUL-NEGLECT RECKLESS-INDIFF PARTICIPATION-DENIED INSTITUTIONAL-DEFLECT ABUSE-OF-PROCESS
12	28 May 2024 <i>OUT_334</i>	W → Campbell KC cc Chalk + McLain + Freeman Bank statement attached	£89 in account. Children present. Bank statement attached. Post-sealing. Bank balance: £89. Children with W for half term. No food. No accommodation. Education bills unpaid. Bank statement attached as contemporaneous proof. This is after the sealed order. MPS arrears already extinguished by para 34 without W's knowledge.	WILFUL-NEGLECT RECKLESS-INDIFF REASONS-REFUSED PARTICIPATION-DENIED INSTITUTIONAL-DEFLECT
13	3 May 2024 15:55 <i>PARA34_INSERT</i>	Campbell KC → Karen (court) Para 34 insertion — MPS arrears remitted 1 minute after W's Chalk email	Para 34 inserted without notice. D50K extinguished. 1 minute after W's Chalk email. Campbell files amended draft containing para 34 (MPS arrears remitted) at 15:55 — exactly 1 minute after W's email to Lord Chancellor Chalk at 15:54. No notice to W. No application. No hearing. This provision extinguishes the D50K enforcement application filed 2 May.	WILFUL-NEGLECT ABUSE-OF-PROCESS PARTICIPATION-DENIED INSTITUTIONAL-DEFLECT
14	3 May 2024 16:48 <i>IN_KAREN_REFRAME</i>	Court — Karen Selby-King	Stay refused. Part 3A argument reframed to avoid engaging with it. No reasons.	REASONS-REFUSED INSTITUTIONAL-DEFLECT

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		relaying MacDonald J Stay application refused	W asked for a stay pending MPS enforcement and equal footing. MacDonald J's response refuses the stay and reframes W's Part 3A participation argument as a request for 'legal representation to be arranged'. This reframing is used to deny reasons.	PARTICIPATION-DENIED ABUSE-OF-PROCESS
15	14 Nov 2025 <i>HMCTS_NOV2025</i>	HMCTS — User Investigation Team (Customer Excellence Division) Misclassification letter	HMCTS formally labels Part 3A withdrawal as 'judicial'. Closes complaint. HMCTS formally classifies W's complaint about withdrawal of Part 3A participation measures as a 'judicial decision'. This is the misclassification that forms Ground 7 of the JR. It closes the administrative complaint channel without engaging with the statutory equality argument.	WILFUL-NEGLECT INSTITUTIONAL-DEFLECT PARTICIPATION-DENIED ABUSE-OF-PROCESS
NEW ADDITIONS (16–20) — LIP TRANSITION · PTSD DISCLOSURE · BINARY QUESTION REFUSAL · PRE-DEADLINE ESCALATION				
16 NEW	5 March 2024 (cardiac) <i>SEQ_43</i>	W → AFP Bloom solicitor (Faye Simpson / Zoë Bloom) Cardiac symptoms + hospitalisation	W reports chest pain and hospitalisation to solicitor. Response: billing discussion. W reports cardiac symptoms, chest pain, and exhausted medication and states she is going immediately to Cromwell Hospital — the first documented medical emergency in the record. The solicitor's substantive response is a billing discussion. This is the first point at which the causal chain from institutional failure to physical harm is documented in writing: no deadline on Oxus → unresolved uncertainty → cardiac episode. No Part 3A accommodation. No welfare referral.	WILFUL-NEGLECT RECKLESS-INDIFF PARTICIPATION-DENIED INSTITUTIONAL-DEFLECT ABUSE-OF-PROCESS
17 NEW	6 March 2024 17:26 <i>SEQ_66 / NOAP</i>	AFP Bloom → Court Notice of Acting in Person LIP transition — no Part 3A assessment	LIP transition 6 days post-trial. No Part 3A assessment. No transition support. W in hospital day before. W returns signed NOAP at 17:26, formally becoming a LIP exactly six days after the trial ended and one day after hospitalisation. The NOAP was processed without any Part 3A assessment, any disability accommodation review, or any transition support. W simultaneously names 6 heads of false representation under oath and states Imerman devices have not been reviewed. FPR PD3AA requires assessment at any change of circumstances — none was conducted. This is the moment the full burden of litigating a £6.2M case fell on an autistic, PTSD-diagnosed, hospitalised woman with no funds.	WILFUL-NEGLECT RECKLESS-INDIFF PARTICIPATION-DENIED INSTITUTIONAL-DEFLECT
18 NEW	19 March 2024 (PTSD disclosure) <i>SEQ_79</i>	W → AFP Bloom (Zoë Bloom / Faye Simpson) First explicit PTSD disclosure	First written PTSD disclosure. Physical symptoms listed. Solicitor's reply: 'heard and understood'. No action. W documents in detail that the trial has pushed her PTSD into unprecedented territory — rapid heartbeat, gastric pain, numb left hand, destruction of nervous system. She states she is starving and cannot function. This is the first explicit naming of PTSD in the correspondence record. The solicitor's reply acknowledges receipt but takes no action — no Part 3A assessment, no welfare referral, no return to record. Autistic parties require written, unambiguous responses. 'Heard and understood' without any action is the pattern the CLAAS diagnosis (June/July 2025) confirms was systematically misread.	WILFUL-NEGLECT RECKLESS-INDIFF PARTICIPATION-DENIED INSTITUTIONAL-DEFLECT
19 NEW	21 March 2024 <i>SEQ_87 + SEQ_91</i>	W → Zoë Bloom (AFP Bloom) Binary question sequence Solicitor refuses single YES/NO answer	Autistic client asks single binary question. Solicitor explicitly refuses to answer YES or NO. Threatens to act without instructions. W reduces her question to a single point requiring a binary YES or NO: does the brief fee cover translating the judgment to a court order regardless of funds? Zoë Bloom explicitly states she 'cannot give a binary answer' and simultaneously threatens to update Detach (the litigation funder) without W's instruction. This is the clearest documented evidence of autistic communication needs being refused by a legal professional: the CLAAS diagnosis	WILFUL-NEGLECT RECKLESS-INDIFF PARTICIPATION-DENIED INSTITUTIONAL-DEFLECT ABUSE-OF-PROCESS

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			confirms binary, unambiguous questions are a core accommodation need. The refusal to answer, paired with a coercive threat, is significant for both PART3A and professional conduct purposes.	
20 NEW	2 May 2024 (full day) SEQ_251 + 252 + 265 + 266	W → Campbell KC / Allen KC / Lord Chancellor / Court Pre-deadline escalation day	20+ communications in one day. BSB regulatory question asked and refused. Lord Chancellor notified. Formal opposition filed in writing. Campbell submits next morning. On 2 May — the day before the draft order deadline — W sends over 20 documented communications covering: formal invocation of PTSD and HRA rights (SEQ_251); formal notification to court that she cannot continue without help (SEQ_250); the BSB regulatory question to Allen KC as Joint Head of Chambers asking whether Campbell can submit unilaterally when W has no equal footing (SEQ_260/262/263); Allen KC's response — a one-line iPhone apology for misspelling her name (SEQ_264); formal written opposition to everything Campbell will file, citing FPR overriding objective (SEQ_265); ministerial notification to Lord Chancellor at 11:35pm (SEQ_266). Campbell submits the unilateral draft order the next morning. The totality of 2 May makes clear that every responsible actor was on notice of W's inability to participate — and proceeded.	WILFUL-NEGLECT RECKLESS-INDIFF PARTICIPATION-DENIED INSTITUTIONAL-DEFLECT ABUSE-OF-PROCESS REASONS-REFUSED

TAG LEGEND — MISCONDUCT IN PUBLIC OFFICE ELEMENTS

Counts updated to reflect Master Index v7 (11 March 2026). All counts are from the 379-record BV20D01752 dataset.

CODE	FULL TAG	DEFINITION (AG's Reference No 3 of 2003)	RECORDS (379 total)
WN	WILFUL-NEGLECT	Known duty; failure to perform; no explanation given	133
RI	RECKLESS-INDIFF	Incapacity evidence received; no accommodation taken	95
RR	REASONS-REFUSED	Decision made; reasons required; none given	15
PD	PARTICIPATION-DENIED	Knew W could not participate; proceeded anyway	172
ID	INSTITUTIONAL-DEFLECT	Formal matter raised; routed away without engagement	180
AP	ABUSE-OF-PROCESS	Procedure used inconsistently with its purpose	58